



U.S. Department
of Transportation

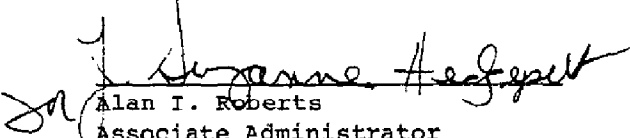
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8640 (EXTENSION)
SECOND REVISION February 28, 1990

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8640 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to January 31, 1993. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105 and the public proceeding thereon. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

FEB 19 1991
(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Fruehauf Trailer Corporation
Omaha, NE

November 27, 1990



U.S. Department
of Transportation

Research and
Special Programs
Administration

FEB 28 1990

400 Seventh Street S.W.
Washington, D.C. 20590

DOT-E 8640
(SECOND REVISION)

1. Fruehauf Corporation, Omaha, Nebraska, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to manufacture, mark, and sell certain non-DOT specification cargo tanks as described in paragraph 7 below for use in the transportation of the hazardous waste materials described in paragraph 3 below in commerce subject to the requirements specified herein. This exemption authorizes the use of non-DOT specification cargo tanks and provides no relief from any regulation other than as specifically stated.
2. BASIS. This exemption is based on Fruehauf Corporation's application dated July 9, 1987, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon.
3. HAZARDOUS MATERIALS (Descriptor and class). Liquid and semi-solid waste materials including mixtures, compatible with the packaging containing flammable liquids, or corrosives or Poison B materials, or combinations thereof, classed as flammable liquid, corrosive material, or Poison B, as appropriate.
4. PROPER SHIPPING NAME (49 CFR 172.101). The specific commodity name or generic description, as appropriate.
5. REGULATION AFFECTED. 49 CFR 173.119(a) and (m), 173.245(a), 173.346(a), 178.340-7, 178.342-5, 178.343-5.
6. MODE OF TRANSPORTATION AUTHORIZED. Motor vehicle.
7. SAFETY CONTROL MEASURES. Packaging prescribed is a non-DOT specification cargo tank designed and constructed in full compliance with DOT Specification MC-307 or MC-312 (49 CFR 178.340, 178.342, 178.343) except as follows and must be stamped for both internal and external pressure ratings:

- a. The cargo tank must be designed, built and certified in accordance with Section VIII of the ASME Code to a minimum design pressure as follows and must be stamped for both internal and external pressure ratings:

<u>Basic Cargo Tank Specification</u>	<u>Design Pressure (psig)</u>		<u>Test Pressure (psig)</u>
	<u>Internal (See Note 1)</u>	<u>External (See Note 2)</u>	
MC 307	25	15	37.5
MC 312	25	15	37.5

Note 1: The design pressure must be at least equal to the maximum pressure used for unloading.

Note 2: Vacuum tanks must have an external design pressure of at least 15 psi.

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b. Circumferential reinforcement must comply with 49 CFR 178.340-7 except the maximum unreinforced portion of the shell may exceed 60-inches provided thickness and tensile strength of the shell material in combination with the frame and circumferential reinforcement produces structural integrity at least equal to that prescribed in 49 CFR 178.340-4(b).

c. In place of internal valves prescribed in 49 CFR 178.342-5(a) and 178.343-5(b), each tank may be equipped with one 8-inch maximum diameter bottom outlet with remote closure with self closing gate, plug or butterfly valve and one optional 4-inch maximum diameter bottom inlet with gate, plug or butterfly valve located near the rear of tank in accordance with Drawing BKZ 0361-9 dated April 2, 1981, on file with the Office of Hazardous Materials Transportation (OHMT). Each bottom outlet and each bottom inlet must be equipped with an additional shut-off valve, or a blank flange or a sealing cap.

d. The metal identification plate and the manufacturer's certificate must not be marked to indicate compliance with DOT MC-307 or MC-312 specifications but instead must bear reference to DOT-E 8640.

e. Tanks that are to be used in transporting flammable waste materials must be equipped with a spring loaded relief valve.

8. SPECIAL PROVISIONS.

a. Shippers may use the packaging covered by this exemption pursuant to 49 CFR 173.22a.

b. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

c. Each cargo tank must be reinspected and retested once every two years in accordance with 49 CFR 177.824 as prescribed for DOT Specification MC-307 or MC-312 cargo tanks, as appropriate, at one and one-half times the sum of the design pressure plus the static head.

d. Each cargo tank must be plainly marked on the right side near the front, in letters at least two inches high on a contrasting background, "DOT-E 8640."

e. The Manufacturer's Data Report for the first cargo tank fabricated must be submitted to the OHMT prior to initial shipment.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package or cargo tank rollover must be reported to the Office of Hazardous Materials Transportation as soon as practicable.

10. EXPIRATION DATE. January 31, 1991.

Issued at Washington, D.C.:



Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

FEB 28 1990

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA